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Subject: [External] National Science Foundation's Request for Information on the Development of an Artificial Intelligence (AI) Action Plan
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I am an everyday American in their twenties who's trying to make a small business out of the art I create. I worry for my future and that of other aspiring to make a living off of their art and learned skills that generative AI steals from.

The AI systems made by Big Tech companies like OpenAI (Microsoft) and Google threaten to destroy thousands of American small businesses and prevent future ones from forming with their recent demand to create special carve outs in copyright law.

AI systems can only be produced by first training on work made originally made by humans. My unique work, and the work of hundreds of thousands of other everyday American creators was taken and fed into these AI systems without our consent or any compensation. They ingest our work, reassemble it, and then sell it back to our clients – directly competing with us and cutting us out of the marketplace.

Now these Big Tech companies are asking this administration to create exceptions and loopholes to make this practice of stealing American creators' copyrighted work legal precedent. They are suggesting that if a machine ingests and reproduces copyrighted work, it is somehow suddenly "fair use". The use of these copyrighted material isn't for true educational gain like it could be if humans were taking it to try and learn to improve their own skill or see how something was achieved. This is pure theft, its stealing a product slapping a glossy AI sticker on it then selling it back out to the people.

They seem to believe that anything and everything on the internet – regardless of who owns it – should be theirs for the taking. They claim that if this administration does not allow them to rewrite the law in this way, it will stifle American innovation.

Instead, it will have the opposite effect. The purpose of American copyright law is to protect the incentive to create and innovate. I alone have had the thought to just give up, that there is no point in me trying to keep honing my skills when it will just be ripped away from me in a matter of seconds.

If we the American people do not own our creations, and everything we put online will be stolen by Big Tech giants, what will be the incentive to create? If everyday Americans create a new innovative piece of computer code, a new visual design, or a new piece of music only to have it immediately stolen by Google and Microsoft, why bother creating it in the first place? How will we possibly make a living doing these things? What will happen when bigger companies adopt AI to replace their workforce and layoff hundreds and thousands of employees who then can't find any other work because who would spend money on a true artist when their generative AI can do it for free. Even though the true price of what it cost actual artists can't be quantified.

Want to protect American innovation? Protect American creators. Do not create new copyright exemptions that allow Big Tech companies to exploit and steal from creators and everyday Americans without permission, compensation, or transparency.

This administration's AI Action Plan should focus not on giving away creator content to Big Tech companies, but rather on ensuring a fair marketplace with competition:

First, the government should ensure that creators and everyday Americans give effective consent, so that we can decide when and where our work is used by AI systems. We need to be allowed to turn off any

and all AI features along with it's ability to learn from us if it's embedded in a product or program.

Second, the AI Action Plan should encourage a robust licensing marketplace, so that the incentive to create for small businesses is preserved. Our work has immense economic value, so the value generated by that work should accrue to the original creators, not just Big Tech.

Finally, the AI Action Plan should require transparency from Big Tech companies, requiring them to disclose what material is in their training datasets, and label what content is AI generated.

I am not anti-technology or anti-AI. I am consistently impressed by the capabilities of AI systems, and find them incredibly useful for many things like compiling data to help with medical research. I am anit-genreative AI. We should not sacrifice the hard work of hundreds of thousands of Americans and give it away to Big Tech by rewriting copyright law.

Thank you for the opportunity to comment on these important issues.
